

Court No. - 32

Case :- WRIT - C No. - 468 of 2020

Petitioner :- Jamshed Ali

Respondent :- State Of U.P. And 4 Others

**Counsel for Petitioner :- Sunil Kumar
Srivastava**

**Counsel for Respondent :- C.S.C., Chandan
Agarwal**

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

This writ petition has been filed, inter alia, for the following reliefs:

"Issue a writ, order or direction in the nature of certiorari to quash the order dated 15.12.2018 passed by respondent no. 5 (annexure no. 11 to this writ petition)."

Heard learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for the Electricity Department and perused the record.

At the very outset, learned counsel for the electricity department submitted that against the impugned order the petitioner has an alternative remedy to file a complaint under Clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum for redressal of his grievance. But, instead of availing the said remedy the petitioner has chosen to file the present writ petition, which is not maintainable. Learned counsel for the petitioner has not been able to rebut the

contention so made by the learned counsel for the respondents.

In view of the above, we are not inclined to entertain this writ petition for the reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Consumer Grievance Redressal Forum for redressal of his grievance within two weeks from today by filing a complaint under clause 7.10 of U.P Electricity Supply, Code 2005, the said complaint shall be considered and decided by the said forum in accordance with law preferably within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the Forum concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approaches the Forum concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 9.1.2020

MLK